

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

BAL CONTAINER LINE CO., LIMITED, *Complainant*

v.

SSA MARINE TERMINAL AND SSA TERMINALS (PIER A),
LLC, *Respondents*.

DOCKET NO. 23-11

Served: May 7, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER GRANTING JOINT MOTION TO EXTEND SCHEDULING ORDER

On May 6, 2024, the parties filed a Joint Motion for Extension of Scheduling Order for 30 Days in Furtherance of Renewed Mediation Discussions, noting that they have reached out to the Commission's Office of Consumer Affairs and Dispute Resolution Services to schedule a mediation. Given the potential efficiencies of a negotiated resolution to this action, I find good cause to grant the motion.

This is the second time the parties have requested an extension to the schedule to discuss settlement. On November 13, 2023, in the order granting the parties' joint motion to extend the time to file an answer, I noted that I am generally not inclined to extend deadlines for the purpose of discussing settlement. But since the parties appear to otherwise be on schedule, I do not find that there is any dilatory intent behind the motion. To be clear, this order is not a stay pursuant to 46 C.F.R. § 502.64 – it is an extension of the current scheduling order. I caution the parties that further extensions to the discovery schedule will not be granted absent extraordinary circumstances – they should schedule depositions now to ensure that they are completed by the new deadline, even if that means proceeding on mediation and litigation tracks simultaneously.

For the foregoing reasons, it is hereby **ORDERED** that the motion is **GRANTED**. The parties must adhere to the following schedule:

July 1, 2024	Depositions conclude
July 10, 2024	End of discovery
September 9, 2024	Complainant's brief, proposed findings of fact, and appendix
October 9, 2024	Respondent's brief, proposed findings of fact, appendix, and response to proposed findings of fact

October 23, 2024 Complainant's reply

ALEX
CHINTELLA

Digitally signed by ALEX
CHINTELLA
Date: 2024.05.07 09:56:12
-04'00'

Alex M. Chintella
Administrative Law Judge